

25STCV28082 25STCV28082

County: los-angeles

Division: Civil Law and Motion

Department: 300

Hearing date: 2026-07-21

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Case Number: 25STCV28082 Hearing Date: July 21, 2026 Dept: 300

Case Name: Los

Angeles Unified School District vs. Yette Windom

Case Number: 25STCV28082

OSC Date: July

21, 2026

MOTION FOR DEFAULT JUDGMENT

Background:

On September 25, 2025, Plaintiff Los Angeles Unified School District (Plaintiff) filed a complaint against Defendant Yvette Windom (Defendant) and DOES 1 through 10 asserting causes of action for: (1) Recovery of Money Paid by Mistake (Common Count); (2) Money Had and Received (Common Count); and (3) Money Paid (Common Count).

On October 17, 2025, Plaintiff filed a proof of substituted service as to Defendant.

On December 15, 2025, Plaintiff dismissed the DOE defendants without prejudice.

On December 22, 2025, Plaintiff obtained an entry of default against Defendant.

On May 6, 2026, Plaintiff filed a request for default judgment which was

denied by the Court on June 17, 2026. The Court, after review, ordered Plaintiff to cure the defects identified and submit a new default judgment package fifteen (15) days prior to the next hearing date of July 21, 2026.

Submitted: The requirements of CRC Rule 3.1800 have not been met.

Principal Requested: \$68,986.35

Interest: \$21,867.76

Attorney Fees: N/A

Costs: \$119.25

Total: \$90,973.36

Conclusion:

As previously stated, Plaintiff failed to introduce any admissible evidence establishing that the requested \$68,986.35 in overpay was actually paid to Defendant.

The Court ordered Plaintiff to cure the defects and submit a new default judgment package fifteen (15) days prior to the next hearing date. Plaintiff has not done so.

Order to Show Cause Re: Default Judgment is continued to August 21, 2026 at 08:30 AM in Department 300 at Stanley Mosk Courthouse.